

Guide to disputing false damage claims with photo evidence templates and state demand letter — Action Checklist

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BUILD YOUR EVIDENCE LIBRARY

- ☐ **Build Your Evidence Library:** Photograph every room on move-in day with timestamp metadata enabled, capturing walls, floors, fixtures, and baseboards in every space. This creates a dated baseline that makes it impossible for landlords to blame existing damage on you later.
- ☐ **Build Your Evidence Library:** Shoot close-up photos of problem areas like baseboard gaps, carpet stains, cabinet misalignments, wall cracks, and HVAC filter condition before signing any move-in condition form. Landlords specifically target these areas for false damage claims.
- ☐ **Build Your Evidence Library:** Document pre-existing damage systematically by photographing behind furniture, in corners, under sinks, and near light switches in each room. These hidden areas commonly generate false damage claims during move-out disputes.
- ☐ **Build Your Evidence Library:** Store all photos and documentation in at least two separate locations including cloud backup and a physical copy. Evidence that disappears or becomes inaccessible weakens your case when you need it most.

AUDIT LANDLORD CHARGES

- ☐ **Audit Landlord Charges:** Read the itemized statement like an auditor, flagging inflated charges, duplicated fees, and categorically improper deductions. Landlords count on renters not scrutinizing their itemized list carefully enough to catch these errors.
 - ☐ **Audit Landlord Charges:** Compare each deduction against your move-in photos to identify charges for damage that was already documented before you signed the condition form. This side-by-side review reveals every false claim your landlord is making.
 - ☐ **Audit Landlord Charges:** Get two to three independent contractor estimates for comparable work to establish what disputed repairs actually cost in your area. Landlords routinely charge two to three times market rate for cleaning and repairs.
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- **Audit Landlord Charges:** Flag charges for normal wear and tear that legally cannot be deducted from your security deposit in your state. Landlords frequently claim excessive wear charges that represent ordinary use during a standard tenancy.

WIN THROUGH LEGAL ACTION

- **Win Through Legal Action:** Write a demand letter citing specific photos, identified false charges, and your state security deposit statute with a clear payment deadline. A well-structured demand letter creates legal pressure that landlords cannot legally ignore.
- **Win Through Legal Action:** Send your demand letter within your state's required dispute timeframe, typically 7 to 14 days after receiving the itemized statement. Filing late can forfeit your right to recover your deposit through legal channels.
- **Win Through Legal Action:** File small claims court paperwork if your landlord ignores the demand letter, bringing all documented evidence, photos, and correspondence. Court filing fees are typically \$30 to \$75 and landlords frequently settle before the hearing date.
- **Win Through Legal Action:** Keep copies of all written communications with delivery confirmations and document every phone call including date, time, and what was discussed. This complete paper trail becomes your strongest evidence if the dispute reaches a judge.

Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.